

Michigan Uniform State Antitrust Act

The Michigan Uniform State Antitrust Act is similar to federal antitrust laws in that it makes the following unlawful:

- **Price fixing:** Any contract, combination or conspiracy in restraint of trade, or commerce for two or more brokers to set commission rates.
- **Boycotts:** Any conspiracy, combination, or attempt to prevent a competitor from competition in the marketplace.
- **Territorial or customer allocation:** Any conspiracy, combination, or attempt to monopolize trade or commerce within the state.
- **Tying/Tie-in Agreements:** An offer or discount that is only available with the agreement of another service or offer.

According to the law, any contract or conspiracy in which two or more parties attempt to monopolize, restrain trade or commerce in the market is illegal. Those who violate the law may be guilty of a misdemeanor, face up to two years in jail, and/or face fines of up to \$10,000. Corporations may be fined up to \$1 million. If a person or entity is already being prosecuted under the federal Sherman Act, then actions under Michigan's law won't be taken for the same transactions or occurrences.